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Case Number: 24NNCV03899 Hearing Date: August 4, 2026 Dept: T

Chenghao Yin, et al. vs. Roberta Lea Thornburg

Motion to Tax Costs

Moving Party: Defendant Roberta Lea Thornburg

Responding Party: None

Tentative Ruling: Grant

BACKGROUND

This is a motor vehicle and general negligence action arising from an alleged collision on April 23, 2024, at the intersection of West Foothill Boulevard and South 5th Street in Monrovia, California.

On April 20, 2026, the case was called for a jury trial.

On April 28, 2026, the jury rendered a special verdict finding that Defendant Roberta Lea Thornburg ("Defendant") was negligent and caused harm to Plaintiff Chenghao Yin, a minor by and through his guardian ad litem, Biao Yin ("Plaintiff"). The jury further found that Plaintiff was negligent and that his negligence was a substantial factor in causing his harm.

The jury also assigned 50% of the responsibility to Plaintiff. Plaintiff's total damages were $419,452.05. (Min. Order, 4/28/26.)

On May 26, 2026, the Court signed the judgment reflecting the jury's special verdict and the entry of judgment in favor of Plaintiff in the amount of $209,726.03, representing 50% of the total damages.
Notice of entry of judgment was filed and served three days later.

On June 11, 2026, Plaintiff filed and served a Memorandum of Costs that claimed filing and motion fees, jury fees, deposition costs, service of process, interpreter fees, costs for models, enlargements, and photocopies of exhibits, fees for electronic filing or service, and "other" costs, totaling $17,680.69.

On June 24, 2026, Defendant filed the instant motion to strike or tax costs.

No opposition was filed.

MOVING PARTY POSITION

Defendant seeks to strike expenses incurred after Defendant's service of both Code of Civil Procedure section 998 offers, as Plaintiff's judgment was less favorable than either offer. Defendant also seeks to tax the remaining preoffer costs that she argues were unreasonable or unnecessary.

OPPOSITION

No opposition was filed.

REPLY

No reply was filed.

ANALYSIS

I.

Legal

Standard

Except

as otherwise expressly provided by statute, a prevailing party is entitled as a

matter of right to recover costs in any action or proceeding. (Code Civ. Proc. § 1032, subd. (b).) Under Code of Civil Procedure section

1033.5(c)(2), allowable costs “shall be reasonably necessary to the conduct of

the litigation rather than merely convenient or beneficial to its preparation.” Subdivision (c)(3) requires as follows:

“Allowable costs shall be reasonable in amount.” (Code Civ. Proc. § 1033.5, subd. (c)(3).) “Items not mentioned in [Section 1033.5] and

items assessed upon application may be allowed or denied in the court’s

discretion.” (Code Civ. Proc. § 1033.5, subd. (c)(4).)

“There

is no requirement that copies of bills, invoices, statements, or any other such

documents be attached to the memorandum.”

(Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267.) “Only if

the costs have been put in issue via a motion to tax costs must supporting

documentation be submitted.” (Id.

[citing Bach v. County of Butte (1989) 215 Cal.App.3d 294, 308.) On a motion to tax costs, “[i]f the items

appearing in a cost bill appear to be proper charges, the burden is on the

party seeking to tax costs to show that they were not reasonable or necessary.

On the other hand, if the items are properly objected to, they are put in issue

and the burden of proof is on the party claiming them as costs. Whether a cost

item was reasonably necessary to the litigation presents a question of fact for

the trial court and its decision is reviewed for abuse of discretion. However,

because the right to costs is governed strictly by statute a court has no

discretion to award costs not statutorily authorized.” (Ladas v. California State Auto. Assn.

(1993) 19 Cal.App.4th 761, 774, citations omitted.)

“The

court’s first determination, therefore, is whether the statute expressly allows

the item, and whether it appears proper on its face. If so, the burden is on

the objecting party to show them to be unnecessary or unreasonable.” (Nelson v. Anderson (1999) 72

Cal.App.4th 111, 131, citations omitted.)

The objecting party does not meet this burden by arguing that the costs

were not necessary or reasonable, but must present evidence and prove that the costs are not recoverable. (Litt v. Eisenhower Med. Ctr. (2015) 237 Cal.App.4th 1217, 1224; Seever v. Copley Press, Inc. (2006) 141 Cal.App.4th 1550, 1557.)

II. Discussion

A. Defendant's Section 998 Offers

On September 25, 2025, Defendant served Plaintiff with a Section 998 offer for $375,000, which Plaintiff did not accept. (Grant Decl. ¶¶ 8–9; id. ¶ 8, Exh. A.) On March 11, 2026, Defendant served a second Section 998 offer on Plaintiff for $500,000, which Plaintiff did not accept. (Id. ¶¶ 14–15; id. ¶ 14, Exh. B.)

Code of Civil Procedure section 998 "provides that any party to an action may 'serve an offer in writing upon any other party to the action to allow judgment to be taken or an award to be entered in accordance with the terms and conditions stated at that time.' [Citation.]" (Westamerica Bank v. MBG Industries, Inc. (2007) 158 Cal.App.4th 109, 128.)

Section 998 provides in relevant part:

"If an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the plaintiff shall not recover their postoffer costs and shall pay the defendant's costs from the time of the offer. In addition, in any action or proceeding other than an eminent domain action, the court or arbitrator, in its discretion, may require the plaintiff to pay a reasonable sum to cover postoffer costs of the services of expert witnesses, who are not regular employees of any party, actually incurred and reasonably necessary in either, or both, preparation for trial or arbitration, or during trial or arbitration, of the case by the defendant."

(Code Civ. Proc. § 998, subd. (c)(1).)

Furthermore, “[i]n determining whether the plaintiff obtains a more favorable judgment, the court or arbitrator shall exclude the postoffer costs.” (Code Civ. Proc. § 998, subd. (c)(2)(A).) Finally, “[i]f an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the costs under this section, from the time of the offer, shall be deducted from any damages awarded in favor of the plaintiff. If the costs awarded under this section exceed the amount of the damages awarded to the plaintiff the net amount shall be awarded to the defendant and judgment or award shall be entered accordingly.” (Code Civ. Proc. § 998, subd. (e).)

To summarize, “[t]he mandatory penalties imposed by section 998 preclude such a plaintiff from recovering any postoffer costs (although preoffer costs are recoverable if the plaintiff is the prevailing party), and require the plaintiff to pay the defendant’s postoffer costs. If the defendant's postoffer costs exceed the amount of damages awarded to the plaintiff, a judgment must be entered against the plaintiff for the net excess. [Citations.] As a discretionary penalty, a court may also order the plaintiff to pay the defendant’s postoffer expert witness fees.” (Oakes v. Progressive Transportation Services, Inc. (2021) 71 Cal.App.5th 486, 499.)

“To determine whether a plaintiff has obtained a judgment or award more favorable than a defendant’s offer under section 998, a trial court must calculate the ‘net judgment,’ considering the status of the litigation at the time the section 998 offer was outstanding. [Citation.] To do so, the court must add to the judgment or award costs incurred by the plaintiff prior to the offer, including preoffer attorney fees in any case in which attorney fees are otherwise awardable as costs.” (Oakes, supra, 71 Cal.App.5th at 500.)

Accordingly, as Plaintiff’s claimed preoffer costs, when added to the judgment, would not exceed either Section 998 offer, the Court finds that Plaintiff failed to obtain a judgment or award more favorable than either of these offers. As a result, the Court further finds that the last offer rule is not controlling and that Plaintiff’s recoverable preoffer costs are limited to the date of Defendant’s first Section 998 offer on September 25, 2025. (Martinez v. Brownco Construction Co. (2013) 56 Cal.4th 1014, 1026 [“Predictability of the process will not be upset by inapplicability of the last offer rule in cases where each statutory offer proves either equal or more favorable to the offeree than the judgment or award at trial.”]; see, e.g., id. [“Here, plaintiff made two statutory offers, and defendant failed to obtain a judgment more favorable than either. In cases such as this, section 998’s policy of encouraging settlements is better served by not applying the general contract principle that a subsequent offer entirely extinguishes a prior offer.”].)

“A plaintiff who rejects a settlement offer that is greater than the recovery it ultimately obtains may nonetheless recover its preoffer costs to which it would otherwise be entitled, including preoffer attorney fees in cases like this one where attorney fees are an authorized category of recoverable costs under sections 1032 and 1033.5.” (Scott Co. of California v. Blount, Inc. (1999) 20 Cal.4th 1103, 1112.) Similarly, here, Plaintiff may recover his preoffer costs “to which [she] would otherwise be entitled”—i.e., as enumerated under sections 1032 and 1033.5.

Defendant argues that the following costs are unrecoverable and must be taxed as they were incurred by Plaintiff after September 25, 2025: (1) $60.00 in filing and motion fees for a motion compel that was filed on March 9, 2026; (2) $4,147.16 in total deposition costs for depositions taken on February 20, February 24, and March 4 of 2026; (3) $428.80 in service of process fees for a deposition subpoena that was served on a Monrovia Police Department officer on February 19, 2026; (4) $9,966.00 in costs for models, enlargements, and exhibits that were incurred in February of 2026 for the creation of demonstratives; and (5) $36.85 in total electronic filing fees that were incurred for filings on October 20, 2025, and March 9, 2026. (Grant Decl. ¶ 21, Exh. E.) As the submitted evidence establishes that these were postoffer costs incurred after September 25, 2025, the Court finds that Plaintiff may not recover any of these costs, which total $14,638.81. Thus, $14,638.81 is taxed from Plaintiff’s cost memorandum for all postoffer costs incurred.

B. Plaintiff’s Remaining Costs

Of the remaining costs sought, Defendant argues that half of the $870.00 in total filing and motion fees attributed to the complaint are unreasonable and unnecessary, as the invoices confirm that Plaintiff incurred these expenses by twice filing his complaint on August 29, 2024. As there is no explanation offered for this duplicative filing, and as the added filing cost incurred by Plaintiff appears to be unreasonable and unnecessary, the Court finds that $435.00 of these fees are not recoverable. (Grant Decl. ¶ 21, Exh. E.) Thus, $435.00 is taxed from Plaintiff's claimed filing and motion fees. Likewise, as Plaintiff seeks recovery of $38.44 in total fees for electronic filing or service that were incurred for the filing of both of these complaints, the Court finds that half of these costs are unreasonable and unnecessary and taxes $19.22 from them. (Ibid.)

Defendant also argues that $441.46 should be taxed from Plaintiff's claimed "other" costs for subpoenaed records. As these costs appear to be improperly sought by Plaintiff under this category, and as Plaintiff failed to show why such records were reasonable and necessary, the Court finds that these costs are not recoverable. Thus, $441.46 is taxed from the "other" costs.

Therefore, as the Court has found that all of the challenged costs are not recoverable, the motion to strike or tax costs is granted in its entirety, reflecting a total reduction of $15,534.49 from Plaintiff's claimed costs.

RULING

Defendant's Motion to Tax Costs is GRANTED. The total amount in costs recoverable by Plaintiff will be $2,146.20.

Chenghao Yin, et al. vs. Roberta Lea Thornburg

Motion to Strike or Tax Costs

Moving Party: Plaintiff Chenghao Yin, a minor by and through his guardian ad litem, Biao Yin

Responding Party: Defendant
Roberta Lea Thornburg

Tentative Ruling: Grant
in part

BACKGROUND

This is a motor vehicle and general negligence action arising from an alleged collision on April 23, 2024, at the intersection of West Foothill Boulevard and South 5th Street in Monrovia, California.

On April 20, 2026, the case was called for a jury trial.

On April 28, 2026, the jury rendered a special verdict finding that Defendant Roberta Lea Thornburg ("Defendant") was negligent and caused harm to Plaintiff Chenghao Yin, a minor by and through his guardian ad litem, Biao Yin ("Plaintiff"). The jury further found that Plaintiff was negligent and that his negligence was a substantial factor in causing his harm.
The jury also assigned 50% of the responsibility to Plaintiff. Plaintiff's total damages were $419,452.05. (Min. Order, 4/28/26.)

On May 26, 2026, the Court signed the judgment reflecting the jury's special verdict and the entry of judgment in favor of Plaintiff in the amount of $209,726.03, representing 50% of the total damages.
Notice of entry of judgment was filed and served three days later.

On June 3, 2026, Defendant filed and served a Memorandum of Costs that claimed deposition costs, witness fees, court reporter fees as established by statute, interpreter fees, costs for models, enlargements, and photocopies of exhibits, and "other" costs, totaling $101,640.90.

On July 30, 2026, the Court granted Plaintiff's ex parte application to allow for the timely filing of Plaintiff's motion to tax cost due to a clerical error. Plaintiff now moves to strike or tax, at minimum, $38,731.26 of Defendant's claimed costs.

Defendant opposes. No reply was filed.

MOVING PARTY POSITION

Plaintiff seeks to strike expenses incurred before Defendant's service of her last Code of Civil Procedure section 998 offer on March 11, 2026, as the last offer rule extinguishes the first offer and bars Defendant's recovery of these costs. Plaintiff also seeks to tax or strike these and other costs as unreasonable or unnecessary, as Defendant has failed to show that these costs were reasonable or necessary.

OPPOSITION

Defendant contends that she is entitled to postoffer costs and expenses from the date of the first 998 offer, based on the applicable exception to the last offer rule. Defendant further contends that her memorandum of costs is prima facie evidence of their propriety and that the motion fails to introduce evidence contesting their reasonableness or necessity. Defendant also asks the Court to amend the judgment to reflect the net judgment once all the costs bills associated with the Section 998 offers are adjudicated.

REPLY

No reply was filed.

ANALYSIS

III. Legal Standard

Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. (Code Civ. Proc. § 1032, subd. (b).) Under Code of Civil Procedure section

1033.5(c)(2), allowable costs “shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” Subdivision (c)(3) requires as follows: “Allowable costs shall be reasonable in amount.” (Code Civ. Proc. § 1033.5, subd. (c)(3).) “Items not mentioned in [Section 1033.5] and items assessed upon application may be allowed or denied in the court’s discretion.” (Code Civ. Proc. § 1033.5, subd. (c)(4).)

“There is no requirement that copies of bills, invoices, statements, or any other such documents be attached to the memorandum.” (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267.) “Only if the costs have been put in issue via a motion to tax costs must supporting documentation be submitted.” (Id. [citing Bach v. County of Butte (1989) 215 Cal.App.3d 294, 308.) On a motion to tax costs, “[i]f the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. However, because the right to costs is governed strictly by statute a court has no discretion to award costs not statutorily authorized.” (Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 774, citations omitted.)

“The court’s first determination, therefore, is whether the statute expressly allows the item, and whether it appears proper on its face. If so, the burden is on the objecting party to show them to be unnecessary or unreasonable.” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131, citations omitted.) The objecting party does not meet this burden by arguing that the costs were not necessary or reasonable, but must present evidence and prove that the costs are not recoverable. (Litt v. Eisenhower Med. Ctr. (2015) 237 Cal.App.4th 1217, 1224; Seever v. Copley Press, Inc. (2006) 141 Cal.App.4th 1550, 1557.)

IV. Discussion

A. Defendant’s 998 Offer

On September 25, 2025, Defendant served Plaintiff with a Section 998 offer for $375,000, which Plaintiff did not accept. (Grant Decl. ¶¶ 8–9; id. ¶ 8, Exh. A.) On March 11, 2026, Defendant served a second Section 998 offer on Plaintiff for $500,000, which Plaintiff did not accept. (Id. ¶¶ 14–15; id. ¶ 14, Exh. B.)

Code of Civil Procedure section 998 "provides that any party to an action may 'serve an offer in writing upon any other party to the action to allow judgment to be taken or an award to be entered in accordance with the terms and conditions stated at that time.' [Citation.]" (Westamerica Bank v. MBG Industries, Inc. (2007) 158 Cal.App.4th 109, 128.)

Section 998 provides in relevant part:

"If an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the plaintiff shall not recover their postoffer costs and shall pay the defendant's costs from the time of the offer. In addition, in any action or proceeding other than an eminent domain action, the court or arbitrator, in its discretion, may require the plaintiff to pay a reasonable sum to cover postoffer costs of the services of expert witnesses, who are not regular employees of any party, actually incurred and reasonably necessary in either, or both, preparation for trial or arbitration, or during trial or arbitration, of the case by the defendant."

(Code Civ. Proc, § 998, subd. (c)(1).)

Furthermore, "[i]n determining whether the plaintiff obtains a more favorable judgment, the court or arbitrator shall exclude the postoffer costs." (Code Civ. Proc. § 998, subd. (c)(2)(A).) Finally, "[i]f an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the costs under this section, from the time of the offer, shall be deducted from any damages awarded in favor of the plaintiff. If the costs awarded under this section exceed the amount of the damages awarded to the plaintiff the net amount shall be awarded to the defendant and judgment or award shall be entered accordingly." (Code Civ. Proc. § 998, subd. (e).)

To summarize, "[t]he mandatory penalties imposed by section 998 preclude such a plaintiff from recovering any postoffer costs (although preoffer costs are recoverable if the plaintiff is the prevailing party), and require the plaintiff to pay the defendant's postoffer costs. If the defendant's postoffer costs exceed the amount of damages awarded to the plaintiff, a judgment must be entered against the plaintiff for the net excess. [Citations.] As a discretionary penalty, a court may also order the plaintiff to pay the defendant's postoffer expert witness fees." (Oakes v. Progressive Transportation Services, Inc. (2021) 71 Cal.App.5th 486, 499.)

"To determine whether a plaintiff has obtained a judgment or award more favorable than a defendant's offer under section 998, a trial court must calculate the 'net judgment,' considering the status of the litigation at the time the section 998 offer was outstanding. [Citation.] To do so, the court must add to the judgment or award costs incurred by the plaintiff prior to the offer, including preoffer attorney fees in any case in which attorney fees are otherwise awardable as costs." (Oakes, supra, 71 Cal.App.5th at 500.)

Accordingly, as Plaintiff's claimed preoffer costs, when added to the judgment, would not exceed either Section 998 offer, the Court finds that Plaintiff failed to obtain a judgment or award more favorable than either of these offers.
As a result, the Court further finds that the last offer rule is not controlling and that Defendant's recoverable postoffer costs incurred after the date of her first Section 998 offer on September 25, 2025. (Martinez v. Brownco Construction Co. (2013) 56 Cal.4th 1014, 1026 ["Predictability of the process will not be upset by inapplicability of the last offer rule in cases where each statutory offer proves either equal or more favorable to the offeree than the judgment or award at trial."]; see, e.g., id. ["Here, plaintiff made two statutory offers, and defendant failed to obtain a judgment more favorable than either. In cases such as this, section 998's policy of encouraging settlements is better served by not applying the general contract principle that a subsequent offer

entirely extinguishes a prior offer.”].)

Given the inapplicability of the last offer rule under these circumstances, the Court denies the motion as to the following costs that Plaintiff challenges primarily on this basis: (1) $54,600.39 in total witness fees for Defendant’s expert witnesses Kenneth R. Sabbag, M.D., Lorne S. Label, M.D., and Henricus Jansen, M.S.; (2) $610.85 in deposition costs attributed to the deposition of Defendant on February 24, 2026; (3) $1,003.55 in deposition costs attributed to the deposition of Fortino Villalobos on March 4, 2026; and (4) $1,169.46 in interpreter fees attributed to Plaintiff’s independent medical examination on February 20, 2026. However, as to the remaining deposition costs that Plaintiff challenges, the Court notes that Defendant concedes that $4,072.40 of costs for the depositions of Plaintiff and Biao Yin are not recoverable as they were incurred before September 25, 2025,. (Izadian Decl. ¶¶ 6–7.) Thus, $4,072.40 is taxed from Defendant’s cost memorandum for preoffer costs incurred.

B. Defendant’s Remaining Costs

Further, in reviewing the memorandum of costs, the Court finds that all of Defendant’s claimed costs are expressly allowed under Section 1033.5 and appear to be proper charges on their face. “If items on a memorandum of costs appear to be proper charges on their face, those items are prima facie evidence that the costs, expenses, and services are proper and necessarily incurred. [Citation.] The burden then shifts to the objecting party to show them to be unnecessary or unreasonable. [Citation.]” (Doe v. Los Angeles County Dept. of Children & Family Services (2019) 37 Cal.App.5th 675, 693; accord Rojas v. HSBC Card Services Inc. (2023) 93 Cal.App.5th 860, 896.) Initially, the Court notes that Defendant concedes that her claimed court reporter fees were improper, as they included $2,350.44 in unrecoverable transcript costs.
Thus, $2,350.44 is taxed from Defendant’s claimed court reporter fees as established by statute.

However, as Defendant’s remaining costs appear proper on their face, Defendant’s verified memorandum of costs is prima facie evidence of their propriety. Thus, the burden shifts to Plaintiff to show these costs to be unnecessary or unreasonable. (See Nelson, supra, 72 Cal.App.4th at p. 131.) Accordingly, once a prima facie showing is made, “mere statements” in a motion to tax costs and attorney declaration “are insufficient to rebut the prima facie showing.” (Rojas, supra, 93 Cal.App.5th at p. 896 [quoting Rappenecker v. Sea–Land Service, Inc. (1979) 93 Cal.App.3d 256, 266].) Here, as Plaintiff relies solely on statements in his motion to tax costs and his counsel’s declaration to support his objections to Defendant’s remaining claimed costs, including those costs which he also challenged as unrecoverable under Section 998, the Court finds this insufficient to rebut Defendant’s prima facie showing and carry Plaintiff’s burden of showing these claimed costs were unnecessary or unreasonable. Even if Plaintiff had carried this burden, Defendant provided sufficient evidence establishing these costs as reasonable and necessary, including the declaration of her counsel and supporting exhibits attached and referenced therein. (Grant Decl. Exhs, E)

Therefore, the motion to strike or tax costs is granted in part as to the improper preoffer and transcript costs specified above, reflecting a total reduction of $6,422.84 from Defendant’s claimed costs. In addition, pursuant to Section 998(e), the Court shall deduct the awarded costs from the judgment awarded to Plaintiff.

RULING

Plaintiff’s Motion to Strike or Tax Costs is GRANTED IN PART as to the costs specified above, totaling $6,422.84. The total amount in costs recoverable to Defendant will be $95,218.06. Said costs shall be deducted from Plaintiff’s awarded damages of $209,726.03 and Plaintiff's recoverable costs of $2,146.20.

Defendant to prepare and file an amended judgment reflecting the foregoing adjustments and a final judgment in favor of Plaintiff in the amount of $116,654.17.